



DECISION

Complaint No. : POS/1626/ROJ-57(JBD)/2023

Name and address of the complainant : Mr. Zafaruddin s/o Nasaruddin Brohi, c/o Amir Ali Soomro, Office of Deputy Commissioner, Jacobabad.

Name of the Agency Complained against : Health Department

Name & Designation of Investigating Officer : Mr. Zahid Hussain Buriro
Director Regional Office Jacobabad

Vetted by : Mir Hussain Ali Advisor-M

Subject : COMPLAINT REGARDING DELAY IN APPOINTMENT AGAINST DECEASED QUOTA AND PAYMENT OF GROUP INSURANCE DUES AND FINANCIAL ASSISTANCE, IN RESPECT OF COMPLAINANT'S FATHER

Complaint:

Mr. Zafaruddin filed his complaint dated 21.2.2023 against the District Health Officer, Jacobabad regarding delay in his appointment against deceased quota and payment of dues towards Group Insurance and Financial Assistance in respect of his deceased father who died during service on 20.1. 2007. He therefore requested this Institution to intervene in the matter.

Proceedings:

2. The complaint admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 was referred to the agency for comments. In response, the District Health Officer, Jacobabad vide his office letter dated 28.3.2023 reported that the complainant's father Nasaruddin Brohi, BCG Technician was serving at Directorate Tuberculosis Sindh Hyderabad. The matter was taken up with the Director Tuberculosis Sindh Hyderabad vide this office letter dated 12.4.2023 for comments. In response, the Additional Director, Communicable Disease Control III (TB) @ Directorate General Health Services Hyderabad vide his office letter dated 20.4.2023 reported that Mr. Shamsuddin son of late Nasaruddin Brohi, ex-BCG Technician submitted an application dated 9.4.2007 for his appointment on deceased quota which was forwarded to the Secretary Health Department, Government of Sindh. He further stated that the complainant or other legal heirs of late Nasaruddin Brohi may be advised to apply for Group Insurance and Financial Assistance alongwith bank statement of the widow's bank account.

3. The complainant submitted his rejoinder dated 1.6.2023 that he has already submitted the required documents on 10.5.2023 and 20.5.2023 to the agency. On being referred again, the Additional Director, Communicable Disease Control III (TB) @ Directorate General Health Services Hyderabad vide his office letter dated 16.6.2023 reported that his office has issued letters to the complainant for submitting some necessary documents, and the Manager, N.B.P. Thul District Jacobabad has been asked to submit bank statement w.e.f. 20.1.2007 to 3.1.2014. Thus, it is clear that his office is making efforts to redress the grievance of the complainant, and he enclosed copies of supporting letters as evidence. Subsequently the Additional Director, Communicable Disease Control III (TB) vide

his office letter No. AD/CDC-III/TB/ (Estt:)/3396/3403 dated: NIL reported that he has forwarded the requests regarding appointment against deceased quota, and payment of Financial Assistance, Group Insurance and Benevolent Fund, to the concerned authorities.

4. The Section Officer (DQ) Health Department Karachi vide his office letters dated 9.10.2023 and 31.10.2023 reported that the case of late Nasaruddin Brohi has already been forwarded to the DHO Jacobabad and Additional Director, CDC-III (TB) to provide more information and documents in this regard. The Additional Deputy Commissioner-1 Hyderabad vide his office letter dated 18.3.2024 reported that **Rs. 30,000/-** as Grant in Aid out of Benevolent Fund for the period from December 2023 to February 2024 has been paid to Mst.Aisha Bibi widow of Late Nasaruddin through her bank account No. 3055730438 NBP Thul Branch on 15.3.2024. The Deputy Director General, Communicable Disease Control Sindh Hyderabad vide his office letter dated 14.6.2024 submitted an original cheque bearing No.13169599 dated 7.6.2024, for an amount of **Rs.140,000/-** in favor of Mst.Aisha Bibi received from the State Life Insurance Corporation of Pakistan which was delivered to Mst.Aisha Bibi by the Investigating Officer. The Additional Director, CDC-III (TB) vide his office letter dated 7.4.2025 reported that the request regarding appointment against deceased quota in respect of Mr. Zafaruddin Brohi has been forwarded to the Secretary, Health Department Government of Sindh Karachi on 5.1.2024 and enclosed copy of the same as evidence. The Section Officer (DQ) Health Department, vide his office letter dated 16.6.2025 submitted copy of sanction order No. SO (B) 18.2984/2022-23 dated 16.10.2024 for an amount of Rs.300,000/- as financial assistance in favor of Mst. Aisha Bibi.

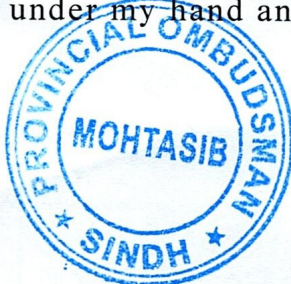
5. This report of the agency was communicated to the complainant who appeared before the Investigating Officer and informed that the Special Secretary, Health Department has issued the sanction order in the wrong head of account / cost center, as the deceased employee was working under the D.G. Health Services Sindh Hyderabad. The Section Officer, (Reg:III) SGA&CD, Government of Sindh Karachi vide his office letter dated 17.4.2025 submitted copy of letter dated 27.1.2025 which reveals that Rule 11-A of the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules, 1974 has been deleted in view of the orders of the Supreme Court of Pakistan, and as such all pending requests for appointment against deceased quota shall be deemed to be null and void. The Section Officer (DQ) Health Department Karachi vide his office letter dated 9.10.2025 submitted that S.O. (Budget-III) Health Department requires a non-payment certificate from the District Accounts Offices of Hyderabad and Kashmore.

6. The matter regarding financial assistance is still pending as the Special Secretary, Health Department has not amended the sanction order for the correct head of account / cost center HBO268.

Decision:

7. I, therefore, in exercise of power vested in me under Section-11 of Establishment of the Office of Ombudsman for the Province of Sindh Act 1991 (amended upto date), hereby direct the Secretary, Health Department Government of Sindh, Karachi to issue within one month the revised sanction order in the correct head of account / cost center-HBO-268 in favor of Mst.Aisha Bibi widow of late Nasaruddin Brohi, ex-BCG Technician Tuberculosis Control Sindh Hyderabad so that the complainant may be able to draw the financial assistance.

“Given under my hand and seal of office”



Sd/-
(Muhammad Sohail Rajput)
 Sitara-e-Imtiaz, PAS
 OMBUDSMAN SINDH
 Karachi, dated 11th March, 2026